

Accellor Redrafted Contract

This document contains the redrafted contract with all negotiated amendments incorporated.

Generated: 2026-04-13 15:54:05

Deal Type:	Advisory / Professional Services MSA (SOW-based)
Deal Value:	Not specified (multi-SOW advisory MSA, 3-year framework assumed)

Full Redrafted Contract

MASTER SERVICES AGREEMENT – KEY RISK CLAUSES (REDRAFT PROPOSAL)

Contract Date: [Date]

Between: G42 Group entity identified in the applicable SOW ("G42") and [Supplier Legal Name] ("Supplier")

> Note: The following are redrafted and new clauses intended to be inserted into the main MSA and/or its schedules. Numbering and cross-references should be aligned with the final contract structure.

1. LIABILITY, EXCLUSIONS AND CARVE-OUTS

1.1 Aggregate Liability Cap

1.1.1 Subject to Clauses 1.2 and 1.3, the total aggregate liability of *Supplier* to *G42* arising out of or in connection with each SOW (whether in contract, tort (including negligence), breach of statutory duty, indemnity or otherwise) shall not exceed an amount equal to **[two (2) / three (3)]** times the total *Fees* paid and payable by *G42* to *Supplier* under that SOW.

1.1.2 The Parties may agree in a SOW a higher or lower cap for specific workstreams or Deliverables, provided that such cap shall not be lower than one (1) times the total *Fees* paid and payable under that SOW.

1.2 Carve-Outs from Liability Cap

1.2.1 The limitations set out in Clause 1.1 shall **not** apply to *Supplier's* liability for:

(a) infringement or alleged infringement of any third-party *Intellectual Property Rights* arising from the provision or use of the *Services* or *Deliverables*;

(b) breach of *Supplier's* obligations of confidentiality under this Agreement;

(c) any breach of *Supplier's* data protection or information security obligations under this Agreement, any applicable data protection schedule or *Applicable Laws*;

(d) fraud, fraudulent misrepresentation, wilful misconduct or gross negligence of *Supplier* or its *Subcontractors*;

(e) any breach by *Supplier* of *Applicable Laws* relating to sanctions, export control, anti-money laundering, counter-terrorist financing, or anti-bribery and anti-corruption; and

(f) any liability which cannot be limited or excluded under *Applicable Laws*.

1.2.2 The exclusions of indirect or consequential loss in Clause 1.3 shall not prevent *G42* from recovering, in respect of the matters listed in Clause 1.2.1, all reasonably foreseeable losses that are the direct and natural result of the relevant breach.

1.3 Exclusion of Certain Types of Loss

1.3.1 Subject to Clause 1.2, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity, loss of goodwill, or purely indirect or consequential loss, in each case to the extent such loss is not the direct and natural result of the relevant breach.

1.3.2 Notwithstanding any exclusion of indirect or consequential loss, *Supplier* shall be liable for all reasonable and demonstrable costs and expenses incurred by *G42* in connection with:

(a) the restoration, recovery or re■creation of data that is lost, corrupted or rendered unusable as a result of *Supplier's* breach of this Agreement, including reasonable incident response, forensic investigation and remediation costs; and

(b) implementing any remediation plan agreed between the Parties or required by a competent supervisory authority in relation to a data protection or information security incident caused by *Supplier*.

1.4 Service Credits and Other Remedies

1.4.1 Any *Service Credits* or other contractual credits or rebates agreed under a SOW shall be without prejudice to any other rights or remedies of G42 and shall not limit or reduce *Supplier's* liability under this Agreement or any applicable cap.

1.4.2 *Service Credits* shall not be treated as liquidated damages unless expressly stated in the relevant SOW and, in any event, shall not be the sole and exclusive remedy for any failure to meet the applicable *Performance Standards*.

2. SPECIFIC INDEMNITIES – DATA PROTECTION AND REGULATORY COMPLIANCE

2.1 Data Protection and Information Security Indemnity

2.1.1 *Supplier* shall indemnify, defend and hold harmless G42 and its Affiliates, and their respective directors, officers and employees, from and against all losses, damages, liabilities, fines, penalties, costs and expenses (including reasonable legal and professional fees) (collectively, "*Losses*") arising out of or in connection with any actual or alleged:

(a) breach by *Supplier* or its *Subcontractors* of any data protection, privacy or information security obligations under this Agreement, any data protection schedule or *Applicable Laws*; or

(b) unauthorised or unlawful access to, or accidental or unlawful destruction, loss, alteration, disclosure of, or damage to, *G42 Data* (including *Personal Data*) in the possession or control of *Supplier* or its *Subcontractors*.

2.1.2 The indemnity in Clause 2.1.1 shall, to the extent permitted by *Applicable Laws*, include:

(a) regulatory fines and penalties imposed by a competent authority directly attributable to *Supplier's* breach;

(b) costs of mandatory notifications to regulators and affected data subjects;

(c) reasonable costs of forensic investigation, incident response, credit monitoring (where required by law or agreed by the Parties) and remediation; and

(d) amounts payable to third parties (including data subjects) under settlements or judgments approved in advance in writing by *Supplier* (such approval not to be unreasonably withheld or delayed).

2.2 Regulatory and Legal Compliance Indemnity

2.2.1 *Supplier* shall indemnify, defend and hold harmless G42 from and against all *Losses* arising out of or in connection with any breach by *Supplier* or its *Subcontractors* of *Applicable Laws* in the performance of the *Services*, including without limitation tax, professional, sanctions, export control, anti■money laundering, counter■terrorist financing and anti■bribery and anti■corruption laws, to the extent such breach causes *Losses* to G42.

2.3 Indemnity Caps and Relationship to General Cap

2.3.1 The indemnities in Clauses 2.1 and 2.2 shall be subject to a separate aggregate cap per SOW of **[two (2) / three (3)]** times the total *Fees* paid and payable under that SOW, or such higher amount as may be specified in the relevant SOW.

2.3.2 The cap in Clause 2.3.1 shall apply in addition to, and not in substitution for, the general liability cap in Clause 1.1, and shall not be subject to any exclusion of indirect or consequential loss to the extent such loss constitutes a type of *Loss* expressly covered by Clauses 2.1 or 2.2.

2.3.3 Nothing in this Clause 2 shall limit *Supplier's* liability for fraud, fraudulent misrepresentation or any liability that cannot be limited under *Applicable Laws*.

3. DATA PROTECTION, PRIVACY AND INFORMATION SECURITY

3.1 Roles and Processing Instructions

3.1.1 The Parties acknowledge that, in relation to any *Personal Data* processed by *Supplier* on behalf of G42 in connection with the *Services*, G42 shall act as controller and *Supplier* shall act as processor (or the equivalent terms under *Applicable Laws*).

3.1.2 *Supplier* shall process *Personal Data* only on documented instructions from G42, as set out in this Agreement, the applicable SOW and the Data Protection Schedule attached as Schedule [X], and shall not process *Personal Data* for its own purposes.

3.2 Technical and Organisational Measures

3.2.1 *Supplier* shall implement and maintain appropriate technical and organisational measures to protect G42 Data (including *Personal Data*) against unauthorised or unlawful processing and against accidental loss, destruction or damage, which shall be no less protective than:

(a) the measures described in the Data Protection and Information Security Schedule; and

(b) measures required under *Applicable Laws* and consistent with Good Industry Practice, including access controls, encryption in transit and at rest (where appropriate), logging and monitoring, segregation of client data, vulnerability management and secure development and operations practices where relevant.

3.3 Sub■Processor and Cross■Border Transfers

3.3.1 *Supplier* shall not appoint any sub■processor (including any other member of the [Supplier Group / PwC network]) to process *Personal Data* on behalf of G42 without G42's prior written consent, which may be given in the form of an approved list of sub■processors and jurisdictions in the Data Protection Schedule or relevant SOW.

3.3.2 *Supplier* shall ensure that any approved sub■processor is bound by written terms that are no less protective of G42 Data than those set out in this Agreement and the Data Protection Schedule, and *Supplier* shall remain fully liable for the acts and omissions of its sub■processors.

3.3.3 *Supplier* shall not transfer *Personal Data* outside the jurisdictions approved by G42 in the Data Protection Schedule or relevant SOW unless it has obtained G42's prior written consent and implemented appropriate transfer mechanisms required under *Applicable Laws*.

3.4 Data Breach Notification and Cooperation

3.4.1 *Supplier* shall notify G42 without undue delay and, in any event, within [24–48] hours after becoming aware of any actual or suspected personal data breach or information security incident affecting G42 Data.

3.4.2 Following such notification, *Supplier* shall:

(a) provide G42 with all information reasonably requested to enable G42 to meet its obligations under *Applicable Laws*;

(b) take all steps reasonably necessary to contain, investigate and remediate the incident; and

(c) cooperate with G42 and any competent authority in relation to the incident, including participation in agreed remediation plans.

3.5 Audit and Assurance

3.5.1 Upon reasonable prior notice and no more than once in any twelve (12) month period (unless required by a competent authority or following a material incident), *Supplier* shall provide G42 with:

- (a) copies of relevant third-party security and compliance reports (such as ISO 27001, SOC 1/SOC 2 or equivalent) and responses to reasonable security questionnaires; and
- (b) where such reports are not sufficient, reasonable assistance to enable G42 to assess *Supplier's* compliance with its data protection and information security obligations, which may include remote or on-site audits, subject to appropriate confidentiality and security controls.

3.6 Data Retention, Return and Deletion

3.6.1 Upon expiry or termination of this Agreement or the relevant SOW, or upon G42's written request, *Supplier* shall promptly cease processing G42 Data (other than to the extent required by *Applicable Laws*) and shall, at G42's option, return to G42 or securely delete all G42 Data (including *Personal Data*) in its possession or control, and shall procure that its sub-processors do the same.

3.6.2 *Supplier* shall provide written certification of deletion upon G42's request.

3.6.3 Obligations relating to *Personal Data* and information security shall continue for so long as *Supplier* or its sub-processors retain any G42 Data.

4. SANCTIONS, EXPORT CONTROL, AML, ANTI-BRIBERY AND CONFLICTS OF INTEREST

4.1 Compliance with Laws

4.1.1 *Supplier* represents, warrants and undertakes that, in connection with this Agreement and the performance of the *Services*, it and its Affiliates, partners, personnel and *Subcontractors* shall:

- (a) comply with all *Applicable Laws* relating to economic sanctions, export controls, anti-money laundering, counter-terrorist financing and anti-bribery and anti-corruption; and
- (b) maintain policies, procedures and internal controls reasonably designed to ensure such compliance.

4.1.2 *Supplier* further represents and warrants that neither it nor any of its Affiliates, partners, personnel or *Subcontractors* involved in the *Services* is a Sanctioned Person or is owned or controlled by a Sanctioned Person.

4.2 Ongoing Screening and Notification

4.2.1 *Supplier* shall conduct appropriate screening and monitoring to ensure ongoing compliance with Clause 4.1.

4.2.2 *Supplier* shall promptly notify G42 in writing if:

- (a) it or any relevant Affiliate, partner, personnel or *Subcontractor* becomes a Sanctioned Person or is the subject of any sanctions-related investigation or enforcement action; or
- (b) any actual or potential breach of applicable sanctions, export control, AML or anti-bribery laws arises in connection with the *Services*.

4.3 Conflicts of Interest

4.3.1 *Supplier* shall maintain and apply policies and procedures to identify and manage actual or potential conflicts of interest in relation to the *Services*.

4.3.2 *Supplier* shall promptly disclose to *G42* any actual or potential conflict of interest of which it becomes aware and shall cooperate with *G42* in agreeing appropriate mitigation measures, which may include information barriers, separate teams or changes to the scope of the *Services*.

4.3.3 If a material conflict of interest cannot be adequately mitigated to *G42*'s reasonable satisfaction, *G42* may terminate the affected SOW (in whole or in part) on written notice without penalty.

4.4 Suspension and Termination Rights

4.4.1 *G42* may immediately suspend performance of the *Services* and/or payments under any SOW where it reasonably believes that continued performance may result in a breach of applicable sanctions, export control, AML or anti-bribery laws, or where *Supplier* is or becomes a Sanctioned Person.

4.4.2 *G42* may terminate this Agreement and/or any SOW with immediate effect by written notice to *Supplier* if:

(a) *Supplier* commits a material breach of this Clause 4; or

(b) continued performance of the *Services* would, in *G42*'s reasonable opinion, expose *G42* to material regulatory or ethical risk under applicable sanctions, export control, AML or anti-bribery laws.

5. USE OF DELIVERABLES, THIRD-PARTY RELIANCE AND REVERSE INDEMNITY

5.1 Internal Use and Group-Wide Reliance

5.1.1 Subject to payment of the applicable *Fees* and compliance with this Agreement, *G42* shall have a perpetual, worldwide, non-exclusive, royalty-free licence to use, copy and modify the *Deliverables* for its internal business purposes.

5.1.2 The licence in Clause 5.1.1 shall extend to all Affiliates of *G42*, who may rely on the *Deliverables* to the same extent as *G42* for internal purposes, provided that *G42* remains responsible for compliance by its Affiliates with the terms of this Agreement.

5.2 Sharing with Third Parties on a No-Reliance Basis

5.2.1 *G42* may disclose the *Deliverables* to its professional advisers, auditors, regulators, lenders, insurers, rating agencies, potential investors, co-investors and potential purchasers of its business (together, "*Permitted Recipients*"), provided that:

(a) such disclosure is made on a no-reliance basis and subject to confidentiality obligations no less protective than those in this Agreement; and

(b) *G42* does not grant any third party the right to rely on the *Deliverables* unless otherwise agreed in writing with *Supplier*.

5.2.2 *Supplier* shall owe no duty of care and shall have no liability to any Permitted Recipient unless and until *Supplier* has expressly agreed in writing to extend reliance to such person under a separate reliance letter or agreement.

5.3 Reliance Letters

5.3.1 Where *G42* reasonably requires a third party to be able to rely on the *Deliverables* (for example, a lender or regulator), the Parties shall negotiate in good faith the terms of an appropriate reliance letter or agreement, including any additional fee and liability cap, which shall be consistent with the liability regime in Clause 1.

5.4 Reverse Indemnity

5.4.1 Any indemnity given by G42 to *Supplier* in respect of third party reliance on the *Deliverables* shall be limited to direct losses suffered by *Supplier* to the extent arising solely from:

- (a) G42 providing the *Deliverables* to a third party in breach of the conditions in Clause 5.2; or
- (b) G42 materially altering the *Deliverables* or removing any legends, disclaimers or no reliance statements without *Supplier's* prior written consent.

5.4.2 For the avoidance of doubt, G42 shall have no obligation to indemnify *Supplier* for any loss arising from *Supplier's* own negligence, breach of this Agreement or failure to comply with *Applicable Laws*.

6. SUBCONTRACTING AND USE OF NETWORK FIRMS

6.1 Approval and Notification

6.1.1 *Supplier* shall not subcontract any material part of the *Services* or engage any other member of its network (including any [PwC] firm) in the performance of the *Services* without G42's prior written consent, which may be given in the form of an approved list of subcontractors and jurisdictions in the relevant SOW.

6.1.2 *Supplier* shall notify G42 in writing of any proposed addition or change to the approved list and G42 shall have [ten (10)] Business Days to object on reasonable grounds, including data protection, security or sanctions concerns. If G42 objects, the Parties shall discuss alternative arrangements in good faith.

6.2 Flow Down and Liability

6.2.1 *Supplier* shall ensure that all subcontractors and network firms involved in the *Services* are bound by written terms that are no less protective of G42 than this Agreement in respect of confidentiality, data protection, information security, business continuity, sanctions/AML/ABC, audit and liability.

6.2.2 *Supplier* shall remain fully responsible and liable to G42 for the acts and omissions of its subcontractors and network firms as if they were the acts and omissions of *Supplier* itself.

6.3 Waiver of Claims and Network Protection

6.3.1 Any contractual limitation or waiver of direct claims by G42 against other members of *Supplier's* network shall not apply to:

- (a) claims arising from fraud, wilful misconduct or gross negligence; or
- (b) claims relating to data protection, confidentiality or sanctions/AML/ABC breaches.

6.3.2 If G42 agrees to any waiver of direct claims against other network firms, *Supplier* shall ensure that the overall liability cap under Clause 1.1 is increased to a level that reasonably reflects the aggregate risk of all network firms involved in the *Services*.

7. BUSINESS CONTINUITY AND DISASTER RECOVERY

7.1 Continuity Obligations

7.1.1 *Supplier* shall maintain and keep under regular review documented business continuity and disaster recovery plans (BCM/DR Plans) covering the *Services*, aligned with Good Industry Practice and, where proportionate, recognised standards such as ISO 22301.

7.1.2 For critical SOWs identified by the Parties, the BCM/DR Plans shall include appropriate recovery time objectives (RTO) and recovery point objectives (RPO) agreed in the relevant SOW.

7.2 Testing and Incident Management

7.2.1 *Supplier* shall test its BCM/DR Plans at reasonable intervals and shall promptly address any material deficiencies identified.

7.2.2 *Supplier* shall notify *G42* without undue delay of any incident that materially affects or is likely to materially affect the continuity of the *Services* and shall:

(a) implement its BCM/DR Plans; and

(b) cooperate with *G42* to prioritise restoration of *Services* for *G42*'s critical engagements.

8. ACCEPTANCE, REJECTION AND RE■PERFORMANCE; PAYMENT LINKAGE

8.1 Acceptance Criteria and Process

8.1.1 Each SOW shall define clear and measurable acceptance criteria, testing or validation steps and acceptance periods for key *Deliverables* and milestones.

8.1.2 Upon delivery of a *Deliverable*, *Supplier* shall notify *G42* in writing and *G42* shall have the period specified in the SOW (or, if not specified, [ten (10)] Business Days) to review and either:

(a) issue a written acceptance; or

(b) provide a written rejection specifying in reasonable detail any material non■conformities with the acceptance criteria.

8.1.3 If *G42* does not respond within the applicable review period, the *Deliverable* shall be deemed accepted, provided that *Supplier* has complied with its obligations under this Clause 8.1 and the *Deliverable* materially conforms to the acceptance criteria.

8.2 Rejection and Re■Performance

8.2.1 If *G42* rejects a *Deliverable* in accordance with Clause 8.1.2(b), *Supplier* shall, at no additional cost to *G42* and within a reasonable period agreed by the Parties, correct the non■conformities and resubmit the *Deliverable* for acceptance in accordance with Clause 8.1.

8.2.2 If *Supplier* fails to remedy the non■conformities within a reasonable time or after [two (2)] resubmissions, *G42* may, without prejudice to its other rights and remedies:

(a) accept the *Deliverable* subject to an equitable reduction in the applicable *Fees*; or

(b) reject the *Deliverable* and, where the non■conformity is material, terminate the relevant portion of the SOW and obtain a refund of any *Fees* paid for the rejected *Deliverable*.

8.3 Payment Linked to Acceptance

8.3.1 For milestone■based work, *Supplier* shall invoice *G42* for each milestone only after the corresponding *Deliverables* have been accepted (or deemed accepted) in accordance with Clause 8.1.

8.3.2 *G42* shall not be obliged to pay any portion of an invoice that relates to *Deliverables* or milestones that have not been accepted or deemed accepted.

8.3.3 *G42* may withhold payment of any disputed portion of an invoice linked to non■accepted *Deliverables* without incurring late payment interest or penalties on the disputed amount, provided that *G42* pays any undisputed portion in accordance with the payment terms.

8.4 Warranty Period

8.4.1 *Supplier* warrants that the *Services* and *Deliverables* will, for a period of [ninety (90)] days from the date of acceptance (the "*Warranty Period*"), materially conform to the applicable *SOW* and acceptance criteria.

8.4.2 During the *Warranty Period*, *Supplier* shall, at no additional cost to *G42*, promptly correct any material defects or nonconformities notified by *G42*.

9. FEES, RATE ESCALATION AND EXPENSE CONTROLS

9.1 Rate Cards and Escalation

9.1.1 The rate cards set out in each *SOW* shall remain fixed for the term of that *SOW* unless otherwise agreed in writing.

9.1.2 Any annual rate increases for new *SOWs* shall be subject to *G42's* prior written consent and shall not exceed the lower of:

(a) five percent (5%); or

(b) the percentage increase in the UAE Consumer Price Index (or such other index as the Parties may agree), in each case measured over the preceding twelve (12) month period.

9.1.3 *Supplier* shall provide at least ninety (90) days' prior written notice of any proposed rate increase.

9.2 *SOW* Fee Caps and Budget Control

9.2.1 Each *SOW* shall include a detailed budget and a not to exceed fee cap for the *Services* (inclusive or exclusive of expenses as specified in the *SOW*).

9.2.2 *Supplier* shall not be entitled to any *Fees* in excess of the agreed fee cap without *G42's* prior written approval, documented in a change order or, where agreed by the Parties, email confirmation between authorised representatives.

9.2.3 *Supplier* shall notify *G42* in writing when it reasonably expects that 80% of the fee cap will be reached and shall provide an updated estimate of the *Fees* required to complete the *Services*.

9.3 Reimbursable Expenses

9.3.1 *G42* shall reimburse *Supplier* only for reasonable, properly documented out of pocket expenses that are:

(a) expressly identified as reimbursable in the relevant *SOW*; and

(b) incurred in accordance with *G42's* then current travel and expense policy, as notified to *Supplier*.

9.3.2 Unless otherwise agreed in the *SOW*, total reimbursable expenses for a *SOW* shall not exceed [ten percent (10%)–fifteen percent (15%)] of the *Fees* under that *SOW* or such fixed amount as the Parties may agree.

9.3.3 Any individual trip or expense expected to exceed [AED/X] shall require *G42's* prior written approval.

9.3.4 *Supplier* shall provide a detailed breakdown of expenses with each invoice, including supporting receipts for items above the agreed threshold.

10. CHANGE CONTROL / VARIATION MECHANISM

10.1 Change Requests

10.1.1 Either Party may request a change to the scope, *Deliverables*, timelines or *Fees* under a SOW by submitting a written change request describing the proposed change and its rationale.

10.2 Change Orders

10.2.1 *Supplier* shall, within a reasonable time after receiving a change request, provide G42 with a written impact assessment setting out the effect of the proposed change on:

- (a) scope and *Deliverables*;
- (b) timelines and milestones;
- (c) *Fees* and expenses; and
- (d) any material risks or dependencies.

10.2.2 No change to a SOW shall be effective unless and until it is documented in a change order signed by authorised representatives of both Parties or, where agreed by the Parties, confirmed by an exchange of emails between such authorised representatives.

10.2.3 *Supplier* shall not implement any material change to the *Services* or incur additional *Fees* in reliance on a change request alone. Any work performed by *Supplier* without an approved change order shall be at *Supplier's* own risk and cost and shall not be billable to G42.

10.2.4 G42 may withhold payment of any charges that *Supplier* claims arise from a change that has not been approved in accordance with this Clause 10.

11. SET■OFF, SERVICE CREDITS AND PERFORMANCE REMEDIES

11.1 Service Credits

11.1.1 Where a SOW specifies *Performance Standards* and associated *Service Credits*, *Supplier* shall calculate and report any *Service Credits* due in the relevant period and submit such report to G42 with the corresponding invoice.

11.1.2 *Supplier* shall issue a credit note for any agreed *Service Credits* within thirty (30) days of agreement or determination.

11.2 Application of Service Credits and Set■Off

11.2.1 G42 may apply any *Service Credits* or other agreed performance■related deductions by setting them off against any amounts payable to *Supplier* under this Agreement or any SOW.

11.2.2 If no further invoices are expected, G42 may require *Supplier* to refund the amount of any outstanding *Service Credits* within thirty (30) days of written request.

11.2.3 The right of set■off in this Clause 11 is in addition to any other rights of set■off or deduction available to G42 under this Agreement or at law.

11.3 Persistent Failures

11.3.1 Persistent or material failure by *Supplier* to meet the *Performance Standards* or other key obligations under a SOW shall entitle G42, without prejudice to its other rights and remedies, to:

- (a) escalate the issue in accordance with the governance process set out in the SOW;
- (b) require a remedial action plan from *Supplier*; and
- (c) where failures continue, terminate the affected SOW (in whole or in part) on written notice.

12. ANTI-BRIBERY, CORRUPTION AND ETHICS / CONFLICTS

12.1 Anti-Bribery and Corruption

12.1.1 *Supplier* shall, and shall ensure that its Affiliates, partners, personnel and *Subcontractors* shall:

- (a) comply with all applicable anti-bribery and anti-corruption laws and regulations; and
- (b) not offer, promise, give, request, agree to receive or accept any bribe, facilitation payment, kickback or other improper advantage in connection with this Agreement.

12.1.2 *Supplier* shall maintain policies, procedures and training reasonably designed to prevent bribery and corruption and shall, upon reasonable request, provide G42 with high-level information regarding such measures.

12.2 Conflicts of Interest

12.2.1 Without limiting Clause 4.3, *Supplier* shall promptly notify G42 of any material conflict of interest that arises or is reasonably likely to arise in relation to the *Services* and shall cooperate with G42 to agree appropriate mitigation steps.

12.2.2 If a material conflict cannot be adequately mitigated, G42 may suspend or re-scope the affected work or terminate the relevant SOW (in whole or in part) on written notice.

12.3 Audit and Termination

12.3.1 Where G42 has reasonable grounds to suspect a material breach of this Clause 12, *Supplier* shall cooperate with G42 in good faith to provide information reasonably necessary to address such concerns, subject to applicable confidentiality and professional obligations.

12.3.2 G42 may terminate this Agreement and/or any SOW with immediate effect by written notice if *Supplier* commits a material breach of this Clause 12.

13. TRANSITION ASSISTANCE AND HANDOVER

13.1 Transition Assistance

13.1.1 Upon expiry or termination of this Agreement or any SOW for any reason, *Supplier* shall, at G42's request, provide reasonable transition assistance to facilitate the orderly transfer of the *Services* to G42 or a replacement supplier, including:

- (a) knowledge transfer sessions and documentation;
- (b) reasonable cooperation with G42 and any replacement supplier; and
- (c) participation in handover meetings and calls.

13.1.2 Transition assistance shall be provided for a period of up to [thirty (30)–ninety (90)] days from the effective date of termination or such other period as the Parties may agree.

13.1.3 Where termination is due to *Supplier's* material breach, transition assistance shall be provided at no additional cost to G42 to the extent reasonably necessary to mitigate the impact of such breach. In all other cases, transition assistance shall be provided on a time-and-materials basis at the rates set out in the relevant SOW or, if none, at the then-current agreed rates.

13.2 Delivery of Materials

13.2.1 Upon expiry or termination of this Agreement or any SOW, *Supplier* shall deliver to G42 all *Deliverables* (whether completed or in progress), working papers, key analyses and status reports reasonably necessary for continuity of the relevant work, subject to the confidentiality and reliance provisions of this

Agreement.

14. CONFIDENTIALITY SURVIVAL AND DATA■RELATED SURVIVAL

14.1 Survival of Confidentiality Obligations

14.1.1 The confidentiality obligations in this Agreement shall commence on the Effective Date and shall survive expiry or termination of this Agreement for a period of not less than five (5) years.

14.1.2 Obligations relating to trade secrets and *G42 Data* (including *Personal Data*) shall continue in perpetuity for so long as such information remains a trade secret or *G42 Data* remains in the possession or control of *Supplier* or its *Subcontractors*.

14.2 Alignment with Data Protection Schedule

14.2.1 The Parties shall ensure that the confidentiality provisions of this Agreement are read together with, and do not limit, the obligations set out in the Data Protection Schedule. In the event of any conflict between the confidentiality provisions and the Data Protection Schedule in relation to *Personal Data* or information security, the Data Protection Schedule shall prevail to the extent of the conflict.

14.2.2 The obligations relating to return and deletion of *G42 Data* shall be performed in accordance with Clause 3.6 and the Data Protection Schedule and in compliance with *Applicable Laws*.

This is an automatically generated document. Please review carefully and consult with legal counsel before execution.

Accellor © 2026